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Case Number: 24TRCV01438 Hearing Date: July 7, 2026 Dept: P

Motion for Summary Judgment

Moving Party: Defendant Christopher Meilleur, M.D., erroneously sued as Christopher Meillur, M.D.

Responding Party: Plaintiffs Danielle Imbriale and Geno Imbriale, individually and as Successors in Interest to Michael Imbriale

RULING

The court considered the moving papers, opposition, and reply. Moving Defendant's Motion for Summary Judgment is CONTINUED. Plaintiffs' request for a continuance pursuant to Code of Civil Procedure Section 437c(h) is GRANTED.

PROCEDURAL BACKGROUND

On April 26, 2024, Plaintiffs Danielle Imbriale and Geno Imbriale, individually and as Successors in Interest to Michael Imbriale (collectively, "Plaintiffs") filed a complaint against Defendants Providence Little Company of Mary Medical Center Torrance, Donna Richey, M.D. ("Dr. Richey"), Christopher Meilleur, M.D. ("Moving Defendant"), Julie Ann Oates, CNM ("CNM Oates"), and DOES 1 through 100, inclusive (collectively, "Defendants"), alleging two causes of action for: (1) Negligence—Medical Malpractice and (2) Wrongful Death.

On December 18, 2025, Defendant Providence Health System – Southern California ("Providence"), erroneously sued as Providence Little Company of Mary Medical Center Torrance, filed a motion for summary judgment. On March 19, 2026, the court continued Providence's motion pursuant to Code of Civil Procedure Section 437c(h).

On April 8, 2026, Moving Defendant filed the instant motion. On June 17, 2026, Plaintiffs filed an opposition. On June 26, 2026, Moving Defendant filed a reply.

FACTUAL BACKGROUND

On January 31, 2023, Plaintiff Danielle Imbriale ("Plaintiff Danielle") was admitted by Dr. Richey to Providence Little Company of Mary Medical Center in response to Plaintiff Danielle's concerns about uterine contractions which began the previous day. (UMF No. 1.) Plaintiff Danielle was obese and Group Beta Strep positive. (UMF No. 2.) Dr. Richey noted that

she expected a spontaneous vaginal delivery. (UMF No. 2.) At 2:56 PM, Plaintiff experienced a spontaneous rupture of membrane and the fluid was clear. (UMF No. 4.)

At approximately 4:00 PM on January 31, 2023, Dr. Richey left the hospital and CNM Oates began taking care of Plaintiff Danielle. (UMF No. 4.) At 6:29 PM, Plaintiff Danielle began pushing with CNM Oates at her bedside. (UMF No. 5.) At 8:20 PM, Plaintiff Danielle became febrile and had a temperature of 101.6 degrees, after which CNM Oates ordered Tylenol in response to Plaintiff Danielle's temperature and ampicillin and gentamicin for presumed chorioamnionitis. (UMF No. 6.)

At 9:20 PM on January 31, 2023, CNM Oates observed that meconium was present, and notified Dr. Richey at approximately 10:00 PM that a cesarian section had been called. (UMF No. 7.) Dr. Richey stated that she was on her way to the hospital. (UMF No. 7.) When Dr. Richey arrived at the hospital, she obtained the assistance of Moving Defendant who was working as an assistant surgeon. (UMF No. 8.) At 11:08 PM, Dr. Richey delivered a male infant via cesarian section, and the infant passed away approximately 1.5 hours later. (UMF No. 8.)

Moving Defendant did not provide any consultations to Dr. Richey or CNM Oates during Plaintiff Danielle's labor and only interacted with Plaintiff Danielle when Moving Defendant assisted Dr. Richey while she performed the cesarean section delivery. (UMF No. 9.) Moving Defendant did not provide any follow-up care in the hospital to Plaintiff Danielle. (UMF No. 9.)

DISCUSSION

Moving Party's Argument

Moving Defendant argues that the evidence shows that he met the applicable standard of care and his conduct did not cause or contribute to Plaintiffs' injuries. Moving Defendant refers to the expert declaration of George T. Matsuda, M.D.

Opposing Party's Argument

Plaintiffs argue that the instant motion is premature and should be continued pursuant to CCP Section 437c(h) because discovery is incomplete. Specifically, Plaintiffs argue that essential facts are unavailable because Plaintiffs have not yet deposed Moving Defendant or CNM Oates. Plaintiffs also argue that the expert declaration of Cynthia Brown, M.D., creates triable issues of material fact regarding whether Moving Defendant violated the standard of care.

Reply Argument

Moving Defendant argues that Plaintiffs have failed to show that facts essential to justify Plaintiffs' opposition may exist but cannot be presented and further argues that Plaintiffs' expert's opinions are conclusory and fail to create triable issues of material fact. Moving Defendant argues that Plaintiffs have failed to show why they have been unable to depose CNM Oates after filing the case approximately two years ago and thus have not been diligent. Moving Defendant argues that Plaintiffs' expert declaration only mentions his name once, failing to show that Moving Defendant breached the standard of care or caused Plaintiffs' injuries.

Merits of the Motion

A. Request for Continuance Pursuant to Code of Civil Procedure Section 437c(h)

Plaintiffs request that the instant motion be continued pursuant to Code of Civil Procedure Section 437c(h), in the alternative to denying Moving Defendant's Motion for Summary Judgment. Here, Plaintiffs argue that discovery is not complete because

expert discovery has not yet occurred and because Plaintiffs have yet to depose Moving Defendant or CNM Oates.

Code of Civil Procedure Section 437c(h) provides:

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.”

A continuance pursuant to Code of Civil Procedure Section 437c(h) is “‘virtually mandated’ where the nonmoving party makes the requisite showing. The party need not show that essential evidence does exist, but only that it may exist.” (Insalaco v. Hope Lutheran Church of West Contra Costa County (2020), 49 Cal.App.5th 506, 517, quoting Weil et al., California Practice Guide: Civil Procedure Before Trial (The Rutter Group 2020).)

Here, Plaintiffs’ counsel declares that expert discovery and the depositions of Moving Defendant and CNM Oates have not yet occurred, which is “directly relevant” to Moving Defendant’s arguments regarding duty, breach, causation, and the “nature and scope of the undertaking with respect to [Plaintiff Danielle’s] labor and delivery care.” (Zahka Decl., p. 2.) Plaintiffs’ counsel declares that while Plaintiffs have deposed Dr. Richey, her testimony is alone is insufficient to establish “what occurred during [Plaintiff Danielle’s] labor course, what clinical decisions were made, and what communications, if any, were had with the other provider defendants, including [Moving Defendant]” because Dr. Richey testified that she was not present at the hospital during Plaintiff Danielle’s labor. (Zahka Decl., pp. 2-3.) Plaintiffs’ counsel declares that Plaintiffs have acted diligently in pursuing discovery because the deposition of CNM Oates was unable to proceed after defense counsel repeatedly declined the dates suggested by Plaintiffs, and the deposition of Moving Defendant was unable to proceed after defense counsel stated that he was unavailable on the noticed date. (Zahka Decl., p. 3.) Plaintiffs’ counsel declares that Plaintiffs have requested a declaration or affidavit from Moving Defendant confirming that he was not consulted during the labor course, but defense counsel has not provided one. (Zahka Decl., p. 3.)

In his reply brief, Moving Defendant argues that Plaintiffs have not been diligent because they filed their action on April 26, 2024, and have not taken the depositions of Moving Defendant or CNM Oates during this time period. The court finds that Plaintiffs’ counsel’s declaration indicates that Plaintiffs were unable to timely depose Moving Defendant and CNM Oates due to defense counsel’s conduct of repeatedly declining Plaintiffs’ attempts to schedule the depositions.

Therefore, the court finds that Plaintiffs have made the requisite showing pursuant to Code of Civil Procedure Section 437c(h). The court also notes that it has previously granted a continuance based on similar grounds articulated by Plaintiffs in response to the motion for summary judgment previously filed by Providence.

Accordingly, Plaintiffs’ request for a continuance pursuant to Code of Civil Procedure Section 437c(h) is GRANTED.

CONCLUSION

Based on the foregoing, Moving Defendant’s Motion for Summary Judgment is CONTINUED. Plaintiffs’ request for a continuance pursuant to Code of Civil Procedure Section 437c(h) is GRANTED. The hearing on the motion is continued until September 3, 2026 at 10:00 AM.

Moving party is ordered to give notice of ruling.